

**FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges**

TOYOTA DE PUERTO RICO, CORP.
Complainant

Docket No. 19-02

v.

PUERTO RICO PORTS AUTHORITY;
CROWLEY PUERTO RICO SERVICES;
AND OCEANIC GENERAL AGENCY INC.
Respondents

SECOND JOINT STATUS REPORT

TO THE HONORABLE COMMISSION:

Pursuant to the Scheduling Order issued by this Honorable Commission on August 6, 2019, the Parties submit this Second Joint Status Report.

A. Production of Initial Disclosures and Written Discovery

1. As per Rule 141 (b) (2) of the Federal Maritime Commission's ("FMC") Rules of Practice and Procedure, 46 C.F.R. §502.141, the Puerto Rico Ports Authority ("PRPA"), had to provide a copy, or a description by category and location, of all documents, electronically stored information, and tangible things it may use to support its claims, within seven (7) days of service of the answer to the complaint.
2. To this day, Toyota de Puerto Rico ("Toyota") has not received any such documents from PRPA. The parties have agreed that a list of requested discovery will be produced by Wednesday, October 23, 2019.

3. Toyota provided its initial disclosures to PRPA on July 29, 2019 and has provided additional documents thereafter upon request.
4. PRPA served written discovery upon Toyota, including a Request for Production of Documents and Interrogatories. That said, the parties have reached an impasse regarding whether or not PRPA is entitled to conduct discovery on the matter of whether Toyota passed on the Electronic Scanning Fees (“ESFs”) to its customers. Toyota believes that such evidence need not be produced because PRPA is not entitled to a pass-on defense, while PRPA believe that such downstream evidence is relevant in this case and easily accessible.

B. Depositions

1. On October 9, 2019 Toyota served upon PRPA a Deposition Notice, pursuant to Rule 143 of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. §502.143, for the taking of a deposition to the person(s) designated by PRPA.
2. Said deposition was scheduled to be taken on October 16, 2019 at 10:00a.m.
3. The day before the deposition, PRPA informed Toyota that it had not identified a competent witness. The deposition was therefore cancelled. PRPA has explained the recent restructuring of the Commonwealth of Puerto Rico’s executive branch, caused by the Governor Ricardo Rosello’s resignation, has resulted in staffing changes in the PRPA’s Executive and Legal Division which in turn have caused delays in production of information.
4. On October 11, 2019, PRPA served a Notice of Deposition, pursuant to Rule 143 of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R.

§502.143, for the taking of a deposition of Mr. Daniel O'Neill (Toyota's Finance Director) and any person designated by Toyota who could provide information as to whether or not Toyota had passed on the cost related to the ESFs to its customers. The deposition had been set for October 17th.

5. .Today, PRPA informed Toyota the name of a witness who can provide the information sought by Toyota. To take said deposition, however, the FMC would have to authorize an extension of the discovery deadline, which expired today.
6. Further, having PRPA delayed the deposition sought by Toyota, the latter informed PRPA that it would not produce its designated witness until such time as PRPA had complied with Toyota's request. Counsel for the parties conferred and agreed that the witnesses would in fact be produced for depositions and new days set.
7. The Parties have agreed on an extension of the Discovery subject to the following:
 - a. That PRPA commits to produce its voluntary disclosures with at least 7 business days anticipation to the deposition, so that Toyota can responsibly prepare to take PRPA's deposition and defend any deposition of its own witnesses, and
 - b. That said extension does not affect the 30-day period originally granted to Toyota since the close of discovery, to file its memorandum of law.
8. Based on that discovery pending, the Parties suggest the following amendment to the calendar:
 - i. October 23, 2019- PRPA must produce its initial disclosures
 - ii. November 1, 2019- Deposition of PRPA's representative
 - iii. November 5, 2019- Deposition of Toyota's representative

iv. December 1st, 2019- Toyota files brief, proposed findings of fact, and appendix.

v. December 18, 2019- PRPA files opposition brief, proposed findings of fact, appendix, and responses to Complainant's proposed findings of fact on the same date previously set by the Honorable Commission.

9. The proposed amended calendar does not affect the conclusion of the briefing schedule set by the Scheduling Order.

C. Mediation and Settlement Negotiations

10. At the initial mediation session, Toyota extended a settlement demand. PRPA has not responded. Settlement negotiations stalled.

D. Developments in Related Cases

11. There has not been any major development in the related cases, *i.e. In re Vehicle Carrier Services*, F.M.C. Docket Nos. 16-01, 16-07, 16-10, 16-11; and, *Dantzler, Inc., et. al. v. Puerto Rico Ports Authority* 18-2089 (1st Cir.). The *Dantzler* case has been fully briefed. The Puerto Rico Supreme Court did recently rule upon the case of *Cámara de Mercadeo, Industria y Distribución de Alimentos v. Autoridad de los Puertos*, CC 2018-600. A motion for reconsideration is currently pending before the consideration of the court.

An original and five copies of this Joint Motion will be filed with the Office of the Secretary.

WHEREFORE the parties respectfully request that the FMC grant the amended proposed schedule, and take notice of the above.

RESPECTFULLY SUBMITTED.

In San Juan, Puerto Rico, this 18th day of October, 2019.

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CERTIFICATE OF SERVICE

We hereby certify that on this same date we served a copy of the foregoing document upon each and all parties of record through their respective attorneys by electronic mailing to the following addresses:

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